

Court No. - 21

Case :- WRIT - C No. - 13177 of 2023

Petitioner :- Ashok Vishwakarma

Respondent :- State of U.P. and Another

Counsel for Petitioner :- Subedar Mishra, Anurag Shukla

Counsel for Respondent :- C.S.C, Udit Chandra

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Prashant Kumar, J.

The instant petition has been filed challenging the notice of provisional assessment dated 26.12.2022 whereby the petitioner has been called upon to file objection against the provisional assessment failing which, it will be treated to be final.

Learned counsel for the petitioner admits that the petitioner has already filed objection against the same but submits that the same has not been decided so far.

Learned counsel for the respondent-Electricity Department states that the objection filed by the petitioner dated 05.12.2022 in response to notice of provisional assessment will be decided before finalising the proceedings.

Accordingly, the petition is disposed of with direction to respondent no. 2 to consider the objections dated 26.12.2022 and follow the procedure prescribed under the U.P. Electricity Supply Code, 2005 while finalising the assessment.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 25.4.2023

Rama Kant